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|-----------------------------------------------------------------------------------|--------------------------|----------------------------------------------------|
|  | <b>Division/Section</b>  | Family Support                                     |
|                                                                                   | <b>Chapter No./Name</b>  | 4 – Economic Stability (ES)                        |
|                                                                                   | <b>Part No./Name</b>     | K – Louisiana Combined Application Project (LaCAP) |
|                                                                                   | <b>Section No./Name</b>  | K-1200-LaCAP Case Maintenance                      |
|                                                                                   | <b>Document No./Name</b> | K-1220-LaCAP Claims Determination                  |
|                                                                                   | <b>Effective Date</b>    | June 1, 2025                                       |

## I. STATEMENT OF POLICY

All overissuances must be reported to the Fraud and Recovery Unit except: Inadvertent Household Error claims and Administrative Error claims less than \$350.00.

Note: The exception does not apply to overissuances discovered in a QC Review for an Intentional Program Violation. For those cases there is no threshold for active or closed cases.

### LACAP How to Determine First Month of Ineligibility or Overissuance

For errors that occur at the time of certification, the first month of overissuance is the first month an error causes the client to receive more benefits than he was entitled to receive.

Benefits should be terminated or reduced effective the earliest possible month after the expiration of advance notice of adverse action, if required.

### LaCAP Ineligibility or Overissuance Because of Agency Delay

If the worker did not take timely action, then the first overissuance month is the month the worker should have made the change effective.

If a notice of adverse action was required but not sent, assume that the advance notice period expired without the household requesting a fair hearing.

## II. PROCEDURES

When a client received more benefits than he was entitled to receive, take the following action:

1. Correct the ongoing benefits as needed using standard adverse action procedures.
2. \* Contact client to discuss the overpayment/overissuance and inform them that:
  - A claim will be submitted to State Office,
  - They will be notified of the decision in writing,
  - They have a right to appeal the decision, and
  - They may contact the local office if they have any questions.
3. All claims must be sent to the Fraud and Recovery Unit no later than forty-five days after the end of the quarter in which the overpayment/overissuance was discovered. Submit a claim

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request by sending an email to the Fraud and Recovery Unit at [DCFS.FRAUD@LA.GOV](mailto:DCFS.FRAUD@LA.GOV). The email must include all required verification and supporting documentation to support the claim. The subject line must read, “Claim Needed for Program” followed by the case identification number (CID). Example: Claim Needed for LACAP – CID 000000000.

## How to Determine Amount of Claim

Include all months of participation in the program when determining the amount of the claim. Participation in the program occurs when the benefits are posted to the EBT account and the availability date is reached, regardless of whether the benefits are accessed by the household.

1. Determine the first month of overissuance in accordance with the following guidelines and procedures outlined in Chapter 00, Miscellaneous Issuances Manual, Part O, Overissuance/Overpayment Procedures, [O-003](#).
2. Subtract the amount of benefits the household should have received from the amount it actually received each month.
3. Add together the amounts of overissuance for each month.
4. Do not reduce the amount of an overissuance in one month by the amount of an underissuance which occurred in another month. **Underissuances must be reported separately by taking the following steps:**
  - submit an email to the Fraud and Recovery Unit,
  - complete a form OFS 20CD, or
  - use the LITE Claims Calculator. \*\*

In cases which have both an underissuance and overissuance, State Office will offset one against the other.

## III. FORMS AND INSTRUCTIONS

OFS 20CD [Form](#) / [Instructions](#) Report of Claim Determination

## IV. REFERENCES

[Louisiana Administrative Code – Title 67 Social Services – Chapter 21 – Louisiana Combined Application Project – Subpart 3 - Subchapter A](#)